UMI Training Data and Model Licensing Policy

Policy updated November 2, 2026 · UMI Inc.

Original legal assessment and source records dated October 22, 2026; ASL STEM Wiki legal/operator determination dated November 2, 2026.

From C7 onward, UMI uses two model licensing tracks. A model trained with permitted NonCommercial data, including How2Sign, or derived from an NC checkpoint must declare that provenance and use CC BY-NC-SA 4.0 with fresh model-bound NC consent. A model whose training data and inherited components support its existing permissive release keeps the original contribution terms and declared license. A mixed model that uses a permitted NC training source follows the NC track.

Existing submissions retain their signed terms. This policy update alone requires no change to an accurately declared existing submission. A miner may submit a new or replacement NC-trained model while intake is open, using the correct declared license and fresh consent. This update does not retroactively rewrite accepted artifacts or excuse a false original rights declaration. The ASL STEM Wiki allowance requires the authenticated version-2 training-rights and NC supplement route; publication of this review does not activate it.

The same two-track approach applies to C8 and later cohorts. NC training or an inherited NC checkpoint selects the NC track; declaring an NC source used only for validation or testing does not by itself select that track or authorize that evaluation use. Retain the applicable source permissions in either case. Both tracks use the same evaluation, resource limits, baseline/grace rule and reward formula; a license label provides no extra score or allocation. Existing content and score-duplicate rules apply across both tracks. The existing baseline and earlier certified models retain their own licenses. This revision incorporates UMI's conditional policy decision and the November 2 ASL STEM Wiki determination into the October 22 review. The original legal authorities and source records below retain their stated assessment date.

1. The policy in brief

The applicable signed contribution terms and authenticated model-license adoption select the track for each model. The rules below describe the conditional policy; publishing this review does not change a signed submission, terms file, cohort clock or historical result.

1. **Both tracks publish their models.** Certified weights are published by UMI on the UMI model repository for anyone to download. There is no private or exclusive track.
2. **Choose the license from the model's actual sources and lineage.** On the NC track, weights, the portable bundle and adapter files carry CC BY-NC-SA 4.0. On the permissive track, retain the existing compatible license and original contribution terms. UMI-authored runtime code stays Apache-2.0; your own inference code may be Apache-2.0 or MIT. A cohort containing an NC model does not make other entries NC.
3. **You may train on permitted NonCommercial datasets through the NC track.** Datasets under CC BY-NC 4.0 or CC BY-NC-SA 4.0 with no additional contractual restrictions are permitted, including How2Sign. Section 3 lists the license classes and the rulings for named datasets.
4. **Bespoke research or access contracts require a source-specific decision.** ASL STEM Wiki is allowed on the NC track under the November 2 legal/operator determination, subject to its actual Microsoft Research License Terms. Other bespoke contracts still require the rights holder's written permission on file. Sections 3 and 9 identify the decision and its scope.
5. **Every submission carries a provenance declaration and a rights warranty** listing each dataset by name, version, URL, license and download route (section 5).
6. **Every bundle attributes its sources** in a NOTICE file in the form section 4 specifies, and reproduces each dataset's responsible-use requests.
7. **Awards are retroactive.** Emissions for a cohort are set only after its results are certified and run for a bounded window until the next cohort is certified. Public release under the selected model license is a condition of the award; on the NC track that means CC BY-NC-SA 4.0.
8. **NC rights do not authorize commercial deployment.** UMI does not run inference on NC-track models

for money, bundle, link, default to or document them in any UMI app, or use them or their outputs to build a product model. Permissive-track models remain governed by their own licenses and original grants; those rights are not narrowed by another entry's NC license. A user's use remains subject to the selected model's license.

9. **You delete what you must delete.** Where a dataset's terms require destruction, complete it when those terms require and attest to it. For ASL STEM Wiki, destruction is due immediately upon completion of research; submitting a model does not itself establish that research has ended.
10. **No faces in publicity.** Dataset videos never appear in demos or marketing without blurring where the dataset asks for it, and never where its terms forbid it.

2. Why NC-track models are non-commercial research models

For the NC track, UMI's cohorts convert paid effort into a public good in the same way a university converts salaried effort into publications, and the NonCommercial test is applied to that use, not to the people who perform it or to the money that funds it. The rules in section 1 are the facts that make this true, and each of them maps to a reason.

November 2 determination. The operator reports that legal has deemed UMI's public research-model use noncommercial: models are publicly released, and miner emissions are treated as grant-like research funding. On that basis the operator approved ASL STEM Wiki training under the conditions in section 3. This records UMI's legal/operator determination, not a Microsoft reply, license amendment or waiver of the source terms. Public release does not remove the model's NC restriction.

The test looks at the use. The Creative Commons NonCommercial element permits any use that is ”not primarily intended for or directed towards commercial advantage or monetary compensation.” Creative Commons applies this to the use, not the user: a nonprofit can breach it and a company can comply with it, and the courts that have construed it (*Great Minds v. FedEx Office*, 2d Cir. 2018; *Great Minds v. Office Depot*, 9th Cir. 2019) measure the licensee's own use and ignore paid intermediaries. The salary of the person doing the work, the revenue of the institution and the motives of the participants are all outside the test. University researchers are paid; universities sell tickets and charge tuition; their research use of NC data is treated as non-commercial everywhere. The same test cannot invoke pay, revenue or motive against UMI.

The use is the production of a public research model. The required output on the NC track is a model released to the public under CC BY-NC-SA 4.0, certified against a benchmark, with results published. That is research output in the ordinary machine-learning sense. Public release is the outcome that research licensors want most, and it is more than much university research delivers, since much of that is never disclosed.

The award is recognition, not purchase. Emissions for a cohort are set only after certification, for a bounded window, for a model that already exists in public. No buyer acquires the model, nothing is exclusive and nothing is transferred. This is retroactive public-goods funding, an established grant form. Grants are awarded on expected quality, prizes and renewals on delivered quality, so a payment that tracks quality is not what distinguishes a grant from a sale; what distinguishes them is whether the funder acquires and exploits the output or recognises a contribution to the public. UMI acquires nothing.

The NC-track output stays non-commercial. CC BY-NC-SA 4.0 on the weights is the downstream condition the NC license itself imposes on shared adaptations, and Creative Commons' own guidance on AI training treats a model shared non-commercially as compliant. UMI does not deploy NC-track models commercially, does not put them in its app and does not build product models from them, so the public good remains a public good after certification.

The licensor's intent is honoured. Research licensors use NC and research-only language to prevent appropriation, secrecy and commercial products. A public NC-SA model involves none of those. How2Sign's signers consented to public availability for research, and a public research model is what they get; the How2Sign site's ”research purposes only” sentence sits on top of a CC BY-NC 4.0 grant and describes exactly this outcome.

Deployment is the user's act. For NC models, the UMI app acts as a general-purpose on-device runtime that loads a model a user independently supplies; UMI does not supply an NC model or a pointer to one. A user who loads an NC model for personal, non-commercial use receives the license automatically and

makes a licensed use; where no one in the chain infringes, there is nothing for secondary liability to attach to, and a general-purpose runtime with substantial lawful uses is itself lawful. UMI's model publication on this track is non-commercial, and the app never points at an NC-track model. This does not revoke the original rights in permissive models.

These reasons are only as good as the facts, which is why section 1 is written as rules and why section 6 keeps UMI's own conduct inside them.

3. Which datasets you may train on

A dataset is eligible when the terms attached to the acquired copy permit the intended training use and model release, or an applicable recorded permission covers them. Permitted NC training sources select the NC track and its public CC BY-NC-SA 4.0 release. Sources and inherited components that support the existing permissive release retain that route. Additional access contracts must be disclosed and cleared; an NC label does not override them. Classify by the terms actually attached to the copy you download, not by what a paper or a mirror says.

CC0, public domain

Eligible?: Yes

Why: No conditions

CC BY 4.0, CC BY 3.0

Eligible?: Yes

Why: Attribution only; carried in NOTICE

CC BY-SA 4.0, CC BY-SA 3.0 (FLEURS-ASL, FLORES, Wikipedia text)

Eligible?: Yes

Why: Attribution and ShareAlike; UMI's recorded position is that weights are not an adaptation of the dataset. Preserve applicable component licenses. Permissive-only models retain their compatible release; mixed models containing permitted NC training sources use NC-SA. This is not a general claim that BY-SA adaptations may be relicensed NC-SA; section 9 records the requested Google confirmation

CC BY-NC 4.0, CC BY-NC-SA 4.0 (How2Sign)

Eligible?: Yes

Why: Non-commercial research use and NC-SA release match the license's own conditions

Apache-2.0, MIT, BSD, ODC-By, CDLA-Permissive

Eligible?: Yes

Why: Attribution and notice only

CC BY-ND, CC BY-NC-ND, any no-derivatives term

Eligible?: No

Why: Training produces an adaptation on the licensor's own reading

Bespoke research or access agreements (Microsoft Research License Terms, ELRA end-user licences, click-through academic agreements)

Eligible?: Only under a named source-specific determination below, or the rights holder's written permission

Why: These are contracts with terms beyond NC, typically no distribution of modifications, destruction after use, named-institution or named-user limits

Scraped video, YouTube, social platforms, unlicensed mirrors

Eligible?: No

Why: No license; platform terms prohibit it; signer consent absent

UMI consented data (collected through the UMI app under the UMI contributor consent)

Eligible?: Yes

Why: Apply the actual contributor consent and license to the selected model track; do not infer broader rights

Rulings for named datasets. These are the datasets miners have asked about. Rights-holder permissions are recorded in section 9. The specific ChicagoFSWild rulings below record the separate operator approval; they do not invent publisher license terms.

FLEURS-ASL (Google Research, CC BY-SA 4.0)

Ruling: Allowed

Conditions: Attribute FLEURS-ASL and FLORES in NOTICE; reproduce the Responsible Use requests (blur faces in publicity, no reidentification, no deepfakes)

How2Sign (UPC, BSC, CMU, Gallaudet; CC BY-NC 4.0)

Ruling: Allowed with conditions

Conditions: Attribute the How2Sign consortium and cite the CVPR 2021 paper; release under CC BY-NC-SA 4.0; do not redistribute the videos, clips, landmarks or English sentences; do not train the How2 source transcripts into a model intended for any other track

ASL STEM Wiki (Microsoft, Microsoft Research License Terms)

Ruling: Allowed with conditions on the NC track under the November 2, 2026 legal/operator determination.

Conditions: Declare ASL STEM Wiki and its actual Microsoft Research License Terms, acquisition route and accepted access terms. Use the authenticated version-2 training-rights contract and NC supplement with fresh model-bound consent. Publish the research model under CC BY-NC-SA 4.0. Use the dataset solely for noncommercial, non-revenue-generating research consistent with the signer consent. Do not share or redistribute the source data, modifications, training clips, landmarks, captions or sentence lists. Preserve confidentiality and applicable destruction requirements. Declare whether research is ongoing or complete; on completion, destroy the required material immediately and attest to the date. Submitting a model does not itself end the research. Attribute Microsoft and ASL STEM Wiki, retain applicable Wikipedia text-layer notices, and reproduce the responsible-use request against technology purporting to replace interpreters. A public research result must not contain a material or substantial portion of the Materials. This source-specific approval does not clear other Microsoft datasets or different access terms. It records no Microsoft correspondence or permission grant.

2M-Flores-ASL, FSboard, Taskmaster-1 (UMI reference-model lineage)

Ruling: Allowed

Conditions: Attribute as the reference model's NOTICE does; each is CC BY or CC BY-SA

UMI consented data

Ruling: Allowed

Conditions: Attribute as ”UMI contributors”; no per-contributor identification; retain the actual consent conditions

ChicagoFSWild and ChicagoFSWild+

Ruling: Operator-approved train splits only

Conditions: Disclose use in PROVENANCE; never train on dev/test. Retain the actual publisher terms, including absence of an explicit license where applicable. This specific approval does not authorize other unlicensed sources or override a separate access contract

A dataset not listed here is eligible if it falls in a ”Yes” class above and you record its terms in your provenance declaration. If you are unsure which class applies, ask before training; rulings are added to this table as they are made.

4. How to license and label your bundle

The bundle carries one license per component and a NOTICE file that lets anyone trace every source. A bundle label never widens the rights in the training data; it records the rights that exist.

NC-track weights, adapters, tokenizer and label vocabularies, portable bundle

License: CC BY-NC-SA 4.0

What the file must say: `LICENSE-WEIGHTS` containing the CC BY-NC-SA 4.0 legal code or its URL; declared model identifier `CC-BY-NC-SA-4.0`

Permissive-track weights and portable bundle

License: Existing compatible declared license

What the file must say: Retain the original component licenses and notices; do not replace them with NC-SA merely because the cohort also accepts NC models

Your inference code and configs

License: Apache-2.0 or MIT

What the file must say: `LICENSE` for the code

UMI runtime and extractor code you redistribute

License: Apache-2.0 (unchanged)

What the file must say: UMI's own `LICENSE` and `THIRD_PARTY_NOTICES` retained

Model card

License: CC BY 4.0

What the file must say: `MODEL_CARD.md`

NOTICE

License: n/a

What the file must say: `NOTICE` as specified below

The NOTICE file. One entry per dataset, in this form, and one entry for any base checkpoint you fine-tuned:

```
SOURCE: How2Sign v1.0
HOLDER: How2Sign consortium (Universitat Politècnica de Catalunya, Barcelona Supercomputing Center,
Carnegie Mellon University, Gallaudet University)
```

```
LICENSE: CC BY-NC 4.0, https://creativecommons.org/licenses/by-nc/4.0/
URL: https://how2sign.github.io/
CITE: Duarte et al., "How2Sign: A Large-scale Multimodal Dataset for Continuous American Sign Language,"
CVPR 2021
USE: Training data for this model. The dataset itself is not redistributed. The model was trained in part
on this source and is released under CC BY-NC-SA 4.0 under UMI's NC-track policy.
REQUESTS: Research use; no redistribution of videos; no identification of signers.
```

For FLEURS-ASL the entry names Google Research, CC BY-SA 4.0, the Kaggle URL, the NAACL 2025 paper, and reproduces the Responsible Use paragraph (blur faces when publicising examples; no reidentification; no deepfakes). For FLORES text used through FLEURS-ASL, name FLORES and CC BY-SA 4.0. For Wikipedia-derived text, name Wikipedia and CC BY-SA. For UMI consented data, name "UMI contributors" and the UMI contributor consent.

The model card states the task, the architecture in one paragraph, every contributor-used training and evaluation dataset by name and version, each component's license, any memorisation test result and its method, and the cohort and certification date when available. NC models additionally state: "This is a research model released under CC BY-NC-SA 4.0. It is not a product, not an interpreter, and not for commercial use." Permissive models state their actual license and intended-use limits instead. This declaration concerns the contributor's own sources; it does not request or disclose UMI's private challenge provenance.

Fine-tuning a certified checkpoint. Any adaptation of a CC BY-NC-SA 4.0 cohort checkpoint must be released under CC BY-NC-SA 4.0, attribute the checkpoint and its cohort, and inherit its NOTICE entries in full.

5. What to submit with a model

For a new or replacement NC submission, include the records below in the authenticated bundle and accept the exact selected NC terms with fresh model-bound consent. Use the current structured provenance format and supported client linked after this list. Existing permissive submissions retain their original required format and reader; this revision does not impose a retrospective resubmission gate.

1. **Provenance declaration.** A `PROVENANCE.json` listing every training, validation and test source and every inherited checkpoint: name, version, canonical URL, license (SPDX identifier where one exists), the route you downloaded it by (direct link, Kaggle, Google Drive, mirror), the date, the archive file names with SHA-256 hashes, and any terms you accepted to obtain it (account terms of service, clickthrough, request form). A dataset you cannot describe this way is not eligible.
2. **Rights warranty.** A signed statement that each listed dataset falls within an applicable permitted license class or named source ruling in section 3, or has the required rights-holder permission recorded in section 9, that any accepted access terms are accurately disclosed and any additional dataset contract has the required recorded source-specific determination or permission, that no training video, frame, landmark cache, caption or sentence list is included in the bundle, and that you grant UMI permission to evaluate, preserve, publish and use the exact submission as a research baseline under CC BY-NC-SA 4.0 as specified in the selected NC supplement. This replaces the original commercial-use grant for that model only; permissive models retain their original grants.
3. **Memorisation-test reporting.** The original review calls for a regurgitation probe using held-out video from each training source, with per-source verbatim-match rates and longest matched spans. The review does not specify a numeric threshold. UMI must publish the actual probe rule before claiming it is an enforced certification gate. Report any completed probe and its method honestly; a declaration or ordinary benchmark score does not establish that an independent probe passed. This revision neither invents a threshold nor retroactively changes signed scoring rules.
4. **Bundle inventory.** A file list with hashes, and a statement that the bundle contains weights, code, configs, model card and notices only.
5. **Destruction attestation**, where a dataset's terms require destruction and its trigger has occurred: the date you deleted the required material. For ASL STEM Wiki, an ongoing-research declaration acknowledges the obligation without inventing a deletion date. A declaration is a contributor attestation, not independent proof of deletion.
6. **NOTICE and model card** as section 4 specifies.

UMI keeps the declaration, warranty, any test output and inventory with the certified checkpoint's hash for as long as the checkpoint is published.

Supported submission path. Use the model contribution guide, structured provenance format, NC supplement, and NC client commands. Update the supported model client before making an NC submission; it does not update itself in the background. Authenticate the cohort's selected model-license route, prepare the bundle, accept the exact terms hash, and sign both the submission and cohort consent. Retain all original artifacts and receipts. No action is required for an unchanged existing C7 submission.

6. Certification, awards, and what UMI does with certified models

Both tracks recognize a public model under the same cohort scoring and allocation rules. The NC track additionally restricts UMI's use to the research-model rights below; the permissive track retains its original contribution grant and compatible license.

Certification. A cohort closes on its published date. Validators use the selected signed scoring and artifact-review rules for each complete submission, with sealed benchmark references and the applicable source declaration. Certified models are published with their actual license and retained notices. NC models carry the non-commercial condition; permissive models retain their original license. The memorisation-probe enforcement limit in section 5 remains explicit; this document does not claim a deployed probe that has no published rule.

Awards. Incentive weights for a cohort go live only after its results are certified and remain live until the next cohort is certified. The award is for the certified public model; it is not a fee for serving inference, and NC models are not served by UMI or validators as a paid service. Public release under the selected model license and the applicable signed contribution terms is a condition of the award. On the NC track, this requires CC BY-NC-SA 4.0. A later cohort does not relicense a previously certified model; any withdrawal or violation is handled under the applicable signed terms.

What UMI does with certified models. UMI stores, evaluates and publishes models, uses them as baselines and reference points, and cites research results under each model's applicable grant. For NC models, UMI does not run paid inference, include or link them in an app, set them as defaults, document them for an app, or use them or their outputs to build or bootstrap a product model. The general-purpose runtime may load an NC model a user independently supplies, subject to that model's license; UMI supplies no NC model or pointer through the app. Permissive models retain the uses supported by their existing licenses and original grants. Referencing a model as a baseline never changes its license.

Publicity. Dataset videos and frames appear in UMI materials only where the dataset's terms and the signers' consent allow it, with faces blurred where the dataset asks. NC-track models are described publicly as research models, never as product or app models. Describe permissive models consistently with their actual license and permitted use.

Takedown. A rights holder or a signer who objects to a certified model may write to UMI; UMI will unpublish the checkpoint and stop using it as a baseline while the objection is reviewed, and will record the outcome in section 9.

7. Dataset terms on record

The table records the license text, access terms, signer consent and provenance of each dataset named in section 3, as read from the live pages and metadata. It is the reference for the rulings above and is updated when a rights holder's reply is recorded in section 9.

ASL STEM Wiki

Rights holder and version: Microsoft Corporation; v1.0, published 15 Oct 2024, ASL_STEM_Wiki.zip, 187.4 GB, Download Center

License text in force: Microsoft Research License Terms: use ”solely for non-commercial, non-revenue generating, research purposes” (s.1); data may be used and modified only ”consistent with the consent under which the data was provided” and ”you may not distribute the data or your modifications to the

data" (s.1(c)); no sharing, publishing, distributing or hosting of the Materials (s.2(e)); personal data used only for consented purposes, kept in strict confidence, never shared, and destroyed "immediately upon the completion of your research" (s.3); results may be published if no material or substantial portion of the Materials is included (s.5); disputes by individual arbitration, King County WA venue (ss.9, 11)

Access and acquisition terms: Direct zip download, no click-through on the download page; the project page points to the license tab and says commercial use requires contacting ASL_Citizen@microsoft.com

Signer consent on record: Consent form: data used "primarily to perform research"; "may eventually be used to develop and improve our commercial products" (Microsoft's); public dataset release "to help advance research"; license of image and likeness to Microsoft "for the research project above and in any related services"; collected under IRB approval; 37 paid professional interpreters, faces visible

Provenance notes: 64,266 videos of 254 English Wikipedia STEM articles; the English text layer is Wikipedia content under CC BY-SA 3.0 and GFDL (datasheet); datasheet says the data "should not be used to develop technology that purports to replace sign language interpreters"

How2Sign

Rights holder and version: How2Sign consortium (UPC, BSC, CMU, Gallaudet; "©Copyright How2Sign"); v1.0; ELRA catalogue entry ELRA-S0416 available from 29 Sep 2022; CORA.RDR deposit doi:10.34810/data33 v1.0, 2024

License text in force: CC BY-NC 4.0: reproduction, sharing and Adapted Material "for NonCommercial purposes only" (s.2(a)(1)); NonCommercial means "not primarily intended for or directed towards commercial advantage or monetary compensation" (s.1(i)); attribution per s.3(a); rights terminate automatically on breach (s.6(a)); no restriction on uses lawful without permission (s.8(a)). Site adds: "publicly available for research purposes only" and "you may NOT use the material for commercial purposes"

Access and acquisition terms: Google Drive links plus a GitHub download script; no click-through or request form on the site; ELRA lists the same CC-BY-NC-4.0 licence for academic and commercial users at EUR 0 (no commercial licence offered); the CORA.RDR deposit carries "custom dataset terms" behind a bot wall, not yet retrieved (section 9)

Signer consent on record: Paper s.3.5: 11 signers (4 Deaf, 2 hard of hearing, 5 hearing) signed a consent form "agreeing on being recorded and making their data publicly available for research purposes"; CMU IRB; faces visible

Provenance notes: ~80 hours of ASL translations of How2 instructional videos; English sentences come from the uploader-provided subtitle track of the How2 source videos; the site says "for copyright reasons, we are not allowed to redistribute the How2 data"

FLEURS-ASL

Rights holder and version: Google Research; Kaggle dataset published 13 Aug 2024, last modified 29 Aug 2024, archive 24.79 GB; paper NAACL 2025

License text in force: CC BY-SA 4.0 (Kaggle Croissant metadata: license name "CC BY-SA 4.0", creativecommons.org/licenses/by-sa/4.0; paper footnote: released "under CC BY-SA 4.0"). Attribution per s.3(a); ShareAlike per s.3(b) applies to Adapted Material that is Shared; s.8(a) as above

Access and acquisition terms: Kaggle account and Kaggle terms of service required to download; no dataset-specific click-through. Description adds non-binding "Responsible Use" requests: blur faces when publicizing examples, do not reidentify interpreters, do not use likenesses for deepfakes

Signer consent on record: 5 paid Certified Deaf Interpreters; "all interpreters gave informed consent for the use of this data in machine learning" and to publication for ML research by the broader community; faces unblurred in the release

Provenance notes: 7.49 hours, 1,749 sentences; the English layer is FLORES dev/devtest text (FLORES+ successor is CC BY-SA 4.0), which is why Google chose ShareAlike; the FLEURS speech card says CC BY 4.0, an inconsistency that does not affect FLEURS-ASL's own license

8. Legal basis

For the NC track, UMI's recorded legal position is that cohort training on NonCommercial datasets is a licensed non-commercial research use; that, independently, the training copies are fair use in the United States and text-and-data-mining in the EU; that trained weights are not a copy or adaptation of any dataset; and that deployment by users in a general-purpose runtime is the users' own licensed act. The position is stated under United States law as of 22 October 2026, with EU and UK notes where the result differs, and rests on the authorities in the table that follows.

I. The NonCommercial test is use-based. CC BY-NC 4.0 s.1(i) defines NonCommercial as "not primarily intended for or directed towards commercial advantage or monetary compensation." Creative Commons' interpretation guidance makes the test turn on the use rather than the user; *Great Minds v. FedEx Office*, 886 F.3d 91 (2d Cir. 2018), and *Great Minds v. Office Depot* (9th Cir. 2019) measure the licensee's own use and disregard paid intermediaries; Creative Commons' guidance on AI training (28 May 2025) states that the license applies only where copyright permission is required, that NC is satisfied when each permission-requiring step is non-commercial, and that a model shared non-commercially complies. Section 8(a) of every CC 4.0 license confirms that the license imposes no condition on a use that is lawful without permission.

II. NC-track cohort training is a non-commercial research use. The use on this track is the reproduction of a dataset to train a model whose required output is a public model released under CC BY-NC-SA 4.0, certified against a benchmark, with published results. The award is retroactive, bounded, and recognises a deliverable that already exists in public without any transfer or exclusivity, which is the structure of retroactive public-goods funding rather than a purchase. The miners' motives and compensation are outside the test for the same reason a researcher's salary is. The output is shared on the terms the NC license itself prescribes for adaptations, and the licensor's purposes in choosing NC, the prevention of appropriation, secrecy and commercial products, are served by the release. How2Sign's "research purposes only" sentence sits on top of a CC BY-NC 4.0 grant with no assent mechanism and describes this outcome.

III. The training copies are independently lawful without any license. Intermediate, non-expressive copying to build a functional tool is fair use under *Sega v. Accolade* (9th Cir. 1992), *Sony v. Connectix* (9th Cir. 2000), *Authors Guild v. Google* (2d Cir. 2015) and *Google v. Oracle* (2021), applied to model training in *Bartz v. Anthropic* (N.D. Cal. 23 Jun 2025) and *Kadrey v. Meta* (N.D. Cal. 25 Jun 2025). The works are thin (green-screen linguistic recordings; factual transcripts); the model does not substitute for a benchmark corpus; no commercial license is offered anywhere for the NC datasets, which the Copyright Office's Part 3 report treats as weighing toward fair use; and a public NC release is nonprofit dissemination. *Thomson Reuters v. Ross* (3d Cir. 29 Sep 2026) concerned a non-generative tool competing directly in a market where licensing was available and expressly reserved generative models. In the EU, Art. 4 of Directive 2019/790 covers the training copies for lawfully accessible content not reserved by the rights holder, and Creative Commons' statement of 17 Dec 2021 confirms that CC licenses are not Art. 4 reservations.

IV. Weights are not a copy or adaptation of the datasets. *Getty Images v. Stability AI* [2025] EWHC 2863 (Ch) holds that a model which stores no copy of the works is not an infringing copy, and the Copyright Office confines infringement by weights to retained, memorised protectable expression. A landmark-based model that emits short English strings retains no video expression; the proposed memorisation probe in section 5 is intended to assess this, subject to its explicit enforcement limits. Neither a benchmark score nor a license declaration proves that a checkpoint retains no protectable expression. On this recorded analysis, CC BY-NC-SA 4.0 is UMI's policy choice for a model trained with permitted NC sources or derived from an NC checkpoint, rather than a blanket license for all cohort models. Permissive models retain their compatible licenses; FLEURS-ASL's ShareAlike, which requires a BY-SA adapter license only for adaptations, is addressed by the confirmation UMI is seeking from Google Research (section 9).

V. Deployment by users is the users' licensed act. For NC models, the UMI app acts as a general-purpose on-device runtime with substantial lawful uses and loads a model the user independently supplies; it ships with no NC model or pointer to one. A user who loads a CC BY-NC-SA 4.0 model for personal non-commercial use receives the license under s.2(a)(5) and makes a licensed use; absent direct infringement there is no secondary liability (*Sony v. Universal*; *MGM v. Grokster*), and general-purpose runtimes are lawful (*Sony v. Connectix*; *Sony v. Bleem*). UMI's publication of the NC model is non-commercial, and section 6 keeps UMI pointers to NC models out of the app. Uses of permissive models remain governed by their original licenses and grants.

VI. Bespoke contracts retain their obligations. Datasets governed by individual license agreements im-

pose obligations beyond a generic NC label, including no distribution of modifications, destruction after use and use within the data subjects' consent. The November 2 determination allows ASL STEM Wiki for the specified public NC research-model use while retaining these obligations. It does not extend to other bespoke contracts, which still require the rights holder's written permission.

Privacy and publicity. The datasets show interpreters' faces. A text-output model stores no likeness and identifies no one; landmark extraction for translation is not biometric identification; in the EU the processing rests on legitimate interests under EDPB Opinion 28/2024; dataset videos are used in publicity only as section 6 allows.

Authorities. Settled rules are the license texts and the cases construing them; the application of fair use, TDM exceptions and the status of weights to model training is still being decided, and the table records where each authority stood on 22 October 2026.

Bartz v. Anthropic

Court and date: N.D. Cal., 23 Jun 2025 (Alsup)

What it decided: Training on lawfully acquired books is "exceedingly transformative" fair use; a permanent library of pirated copies is not

Status on 22 Oct 2026: Class settlement (USD 1.5 bn) finally approved 20 Jul 2026; fair-use ruling never reviewed on appeal; only fee appeals pending in the Ninth Circuit

Kadrey v. Meta

Court and date: N.D. Cal., 25 Jun 2025 (Chhabria)

What it decided: Training Llama held highly transformative; plaintiffs failed on market harm; market-dilution theory noted as the strongest unargued objection

Status on 22 Oct 2026: Distribution claim set for hearing Feb 2027; interlocutory appeal denied 8 Jul 2026

Thomson Reuters v. Ross

Court and date: 3d Cir., 29 Sep 2026 (precedential), affirming D. Del. 11 Feb 2025

What it decided: Fair use rejected for a non-generative legal-research AI trained on headnotes: commercial, minimally transformative, harm to the licensing market for AI-training data; footnote expressly leaves generative AI open

Status on 22 Oct 2026: Rehearing petition deadline extended to 3 Nov 2026; cert petition signalled

US Copyright Office, Copyright and AI Part 3

Court and date: Pre-publication report, 9 May 2025

What it decided: Weights can infringe the reproduction and derivative-work rights where the model retains substantial protectable expression; copying weights infringes only with substantial similarity; commerciality turns on substance, not labels; where a licensing market exists unlicensed use is disfavored

Status on 22 Oct 2026: Still pre-publication; final version promised without substantive change

Getty Images v. Stability AI

Court and date: England and Wales High Court, [2025] EWHC 2863 (Ch), 4 Nov 2025

What it decided: A trained model that does not store or reproduce the works is not an "infringing copy" under CDPA s.27; secondary-infringement claim dismissed; primary training claims withdrawn because training happened outside the UK

Status on 22 Oct 2026: Permission to appeal the s.27 point granted Dec 2025; Court of Appeal date not yet listed

GEMA v. OpenAI

Court and date: Landgericht München I, 42 O 14139/24, 11 Nov 2025

What it decided: Lyrics memorised in model parameters are a reproduction; TDM exception covers training in general but not memorisation of specific works; outputs infringe

Status on 22 Oct 2026: Appeal lodged Dec 2025 (OLG München 6 U 3662/25 e), pending

Kneschke v. LAION

Court and date: LG Hamburg 27 Sep 2024; OLG Hamburg 10 Dec 2025

What it decided: Downloading images to build a research dataset is TDM under §44b UrhG (Art. 4 DSM) and also §60d (Art. 3) because LAION is a non-commercial research organisation; a natural-language reservation was not shown to be machine-readable

Status on 22 Oct 2026: BGH I ZR 281/25 heard 3 Sep 2026, decision due 17 Dec 2026, CJEU referral signalled

Like Company v. Google, C-250/25

Court and date: CJEU, referred Apr 2025, Grand Chamber hearing 10 Mar 2026

What it decided: Whether LLM training is a reproduction and whether Art. 4 TDM covers it

Status on 22 Oct 2026: AG opinion not confirmed; judgment not expected before 2027

9. Source decisions and pending confirmations

This section distinguishes UMI's legal/operator determinations from planned rights-holder correspondence. A recorded operator decision is not evidence that a rights holder sent a reply.

Microsoft (ASL STEM Wiki), ASL_Citizen@microsoft.com

October 22 request record (not sent): Written confirmation that UMI cohort training on v1.0, with CC BY-NC-SA 4.0 public release of weights, destruction of the dataset and derived files after training, and no distribution of modifications, is within the Microsoft Research License Terms and the interpreter consent; or a variation permitting it

Current ruling, November 2: The operator reports legal approval of this noncommercial public research-model use, with emissions treated as grant-like funding, and permits ASL STEM Wiki on the conditional NC track. The approval is subject to the source terms and conditions in section 3. No Microsoft reply or amendment is recorded. The planned request remains historical context; a reply is not a prerequisite to the operator-approved route. Other sources and materially different access terms require their own decision.

How2Sign consortium (UPC, BSC, CMU, Gallaudet), via the CORA.RDR contact and ELDA

What UMI has asked: Notice of this policy and of UMI's reading that cohort training with CC BY-NC-SA 4.0 release is a non-commercial research use within CC BY-NC 4.0; request for the CORA.RDR custom dataset terms

Status: Notice to be sent; ruling is Allowed with conditions and is not contingent on a reply

Google Research (FLEURS-ASL)

What UMI has asked: Confirmation that release of a mixed model under CC BY-NC-SA 4.0 with attribution to FLEURS-ASL and FLORES is acceptable where ShareAlike would otherwise call for CC BY-SA 4.0

Status: Request to be sent; ruling is Allowed and is not contingent on a reply

Sources

Dataset terms (opened 22 Oct 2026): ASL STEM Wiki project page, Microsoft Research License Terms, datasheet, consent form, Download Center entry; How2Sign site, How2Sign paper, ELRA catalogue ELRA-S0416, ISLRN record, CORA.RDR record via B2FIND; FLEURS-ASL on Kaggle and its Croissant metadata, FLEURS-ASL paper, NAACL 2025, arXiv version, FLORES+ card, FLEURS card; UMI subnet repo, UMI reference model.

Licenses and Creative Commons: CC BY-NC 4.0 legal code, CC BY-SA 4.0 legal code, Using CC-licensed works for AI training (28 May 2025), CC FAQ on AI, NonCommercial interpretation, CC statement on Art. 4 opt-outs (17 Dec 2021).

Authorities: Bartz v. Anthropic, No. 24-cv-05417 (N.D. Cal. 23 Jun 2025; final settlement approval 20 Jul 2026); Kadrey v. Meta Platforms (N.D. Cal. 25 Jun 2025; §1292(b) denied 8 Jul 2026); Thomson Reuters v. Ross Intelligence, No. 25-2153 (3d Cir. 29 Sep 2026), affirming (D. Del. 11 Feb 2025); US Copyright Office, Copyright and Artificial Intelligence, Part 3 (pre-publication, 9 May 2025); Great Minds v. FedEx Office, 886 F.3d 91 (2d Cir. 2018); Great Minds v. Office Depot (9th Cir. 27 Dec 2019); Jacobsen v. Katzer, 535 F.3d 1373 (Fed. Cir. 2008); Zellmer v. Meta Platforms (9th Cir. 17 Jun 2024); Getty Images v. Stability AI, [2025] EWHC 2863 (Ch) and permission to appeal; GEMA v. OpenAI, LG München I 42 O 14139/24 (11 Nov 2025), appeal lodged, overview; Kneschke v. LAION, BGH press release on the OLG Hamburg decision and hearing listing I ZR 281/25; Like Company v. Google, C-250/25; Directive 2019/790 Art. 2, Art. 3, Art. 4; AI Act Art. 53; UK Government Report on Copyright and AI, CP 2602959 (18 Mar 2026); EDPB Opinion 28/2024.